

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 27, 2026
8:30 AM/1:30 PM

1. ARIAN ANDREA BEHZIZ V. CHRISTOPHER RYAN DAVIS

26FL0386

On May 29, 2026, Petitioner filed a Request for Order (RFO) seeking property control orders. The RFO was personally served on June 24, 2026, however Petitioner failed to serve the FL-320 and the required Notice of Tentative Ruling.

Respondent has not filed a Responsive Declaration to Request for Order.

This matter is dropped from calendar due to the lack of proper service.

TENTATIVE RULING #1: THIS MATTER IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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2. KAYLA BURGESS V. KYLE BURGESS

23FL0919

On December 26, 2025, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. The parties were referred to Child Custody Recommending Counseling (CCRC) however Respondent failed to appear at the CCRC appointment. The matter came before the court for hearing on March 26, 2026, at which time the parties were re-referred to CCRC with an appointment on April 23, 2026, and a review hearing was set for June 18, 2026. Only Respondent appeared at the re-set CCRC appointment. When the parties appeared for the June 18th hearing, the court once again referred them to CCRC and once again set a review hearing.

Petitioner is requesting sole legal and sole physical custody of the minors. Respondent opposes the request and instead asks for sole physical custody of the minors to be awarded to him and the parties to jointly share legal custody.

The parties attended CCRC on July 23, 2026, and were able to reach some agreements. A report containing those agreements and additional recommendations was prepared on August 3, 2026. It was mailed to the parties on August 4th.

After reviewing the agreements and recommendations contained in the CCRC report the court finds them to be in the best interests of the children and they are hereby adopted as the orders of the court.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #2: AFTER REVIEWING THE AGREEMENTS AND RECOMMENDATIONS CONTAINED IN THE CCRC REPORT THE COURT FINDS THEM TO BE IN THE BEST INTERESTS OF THE CHILDREN AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE